

26STCV12403 26STCV12403

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-08-07

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Case Number: 26STCV12403 Hearing Date: August 7, 2026 Dept: 9

The Court hereby

distributes a tentative Minute Order for the August 7, 2026 ISC. The parties are welcome to provide input and propose modifications to any aspect of the minute order at the Initial Status Conference. If all parties submit on the tentative minute order prior to the commencement of the August 7, 2026 ISC, the Court will adopt the tentative minute order, and the parties need not appear. However, if there is any matter that any party would like to discuss, including any proposed change to this tentative minute order, that party should not submit on this tentative but instead appear at the ISC to raise the issue.

To avoid a failure to appear, please make sure to check in with Department 9 court staff and wait for the case to be called unless you receive notification that all parties have submitted on the tentative minute order.

MARISSA

HAMACHAI vs PRIME HEALTHCARE SERVICES - ST. FRANCIS, LLC HIRING ANYWHERE INC., 26STCV12403

and

MARISSA

HAMACHAI vs PRIME HEALTHCARE SERVICES - ST. FRANCIS, LLC HIRING ANYWHERE INC., 26STCV21313

[TENTATIVE] MINUTE
ORDER

NOTICES OF RELATED
CASES:

Counsel are

ordered to file and serve a Notice of Related Case for any potentially related cases pursuant California Rule of court Rule 3.300, including any class action involving overlapping claims and any PAGA case involving the same representative plaintiff. This is a continuing obligation on both Plaintiffs and Defendants while this case is pending. In particular, Defendant is ordered to file and serve on all parties a Notice of Related Cases in the instant case and also in Akiel Wang v. VBeyond Corporation, VBeyond Healthcare, Saint Francis Medical Center, Prime Healthcare Services-St Francis, LLC, Los Angeles Superior Court Case No. 26STCV11655. Defendant must file and serve the Notice of Related Cases in both cases by no later than August 17, 2026. The Court hereby sets a Non-Appearance Case Review re Ruling upon Notice of Related Cases for October 5, 2026 at 8:30 am in Department 9.

The notice of

related cases filed in 26STCV12403 and 26STCV21313 on 8/4/26 is GRANTED. The Court finds that Case No. 26STCV12403 and

26STCV21313 are related cases. Case No. 26STCV21313

is ordered transferred to Department 9.

The lead case is 26STCV12403. An

initial status conference is set in 26STCV21313 for today's date to be heard

concurrently with the initial status conference set for today's date in Case

No. 26STCV12403. All other dates in 26STCV21313

are advanced and vacated. The Court

reminds the parties that at this juncture, the cases have only been related and

have not been consolidated. Accordingly,

any stipulation, joint status report or other document that applies to more

than one related case must be separately filed multiple times – once in each

related case; it will not suffice to file such document only in one case, such

as the lead case.

PROOFS OF SERVICE

MISSING IN 26STCV21313:

In the PAGA only

case (26STCV21313), Plaintiff's Counsel has failed to file proof of service of

the operative Summons and Complaint on all named defendants. Specifically, Plaintiff's Counsel has failed

to file proof of service of the operative Summons and Complaint on PRIME

HEALTHCARE SERVICES - ST. FRANCIS, LLC and HIRING ANYWHERE INC.

By no later than September

28, 2026, Plaintiff's Counsel must file in 26STCV21313 either proof of service of the operative Summons and Complaint on PRIME HEALTHCARE SERVICES - ST. FRANCIS, LLC and HIRING ANYWHERE INC. or a declaration explaining the failure to file proofs of service of the operative Summons and Complaint on PRIME HEALTHCARE SERVICES - ST. FRANCIS, LLC and HIRING ANYWHERE INC., setting forth any and all efforts undertaken to attempt service of the operative Summons and Complaint on PRIME HEALTHCARE SERVICES - ST. FRANCIS, LLC and HIRING ANYWHERE INC., and explaining why sanctions (including monetary sanctions of at least \$500) should not be imposed for failure to file proof of service of the operative Summons and Complaint on all of the named defendants, in compliance with California Rules of Court, Rule 3.720.

Failure to file

proof of service of the operative Summons and Complaint in 26STCV21313 on PRIME HEALTHCARE SERVICES - ST. FRANCIS, LLC and HIRING ANYWHERE INC. by September 28, 2026 may result in the Court setting an OSC re sanctions.

All Defendants are

ordered to file a timely Notice of Appearance within 30 days of service of the operative Summons and Complaint on them.

If any named

Defendant fails to timely respond to service of the operative Summons and Complaint by filing a Notice of Appearance, Plaintiff must timely seek and obtain entry of default against all such named Defendants who fail to timely file a Notice of Appearance.

HIRING ANYWHERE'S

FAILURE TO RESPOND IN 26STCV12403

In the Class

Action (26STCV12403), Plaintiff has filed proof of service of the operative Summons and Complaint as to certain defendants who have not timely responded to service of the operative Summons and Complaint, including HIRING ANYWHERE INC..

The time to

respond for these defendants who have been served has already lapsed.

The Court reminds

the parties that ultimately, the Court may not enter default judgment in an amount exceeding the amount demanded in the Complaint. (CCP 585(b).)

The Court may not grant relief not demanded in the complaint by default judgment even though that relief otherwise would have been proper. (CCP § 580(a); *Airs Aromatics, LLC v. CBL Data Recovery Technologies, Inc.*

(2018) 23 Cal.App.5th 1013, 1018 (default judgment for sum in excess of that demanded in complaint is void). “It is

fundamental to the concept of due process that a defendant be given notice of the existence of a lawsuit and notice of the specific relief which is sought in the complaint served upon him.” (*Marriage of Lippel* (1990) 51 Cal.3d 1160, 1166 [emphasis added].) Accordingly,

prior to seeking any Defendant's default, Plaintiff may wish to review the operative Complaint to determine whether the operative Complaint gives notice of the amount of damages that Plaintiff seeks to recover in the event of a default judgment; if the operative Complaint fails to do so, it may be futile for Plaintiff to seek entry of Defendant's default without first amending the

Complaint to clearly state and give notice of the amount of damages that

Plaintiff is seeking to recover in the event of a default judgment. In the event that Plaintiff wishes to amend the Complaint for this purpose, the Court hereby lifts the stay to grant Plaintiff leave to file an amended complaint. If

Defendant again fails to respond upon being served with the amended complaint,

a request for entry of Defendant's default on the Amended Complaint may then

possibly lead to a request for entry of default judgment in an amount equal to

or less than that stated in the Amended Complaint. To be clear, the Court is not ordering

Plaintiff to amend the operative Complaint; if, after considering the above,

Plaintiff voluntarily wishes to amend the operative Complaint to give notice of

the amount of damages that Plaintiff seeks to recover in the event of a default judgment, the Court hereby grants leave for Plaintiff to do so.

By no later than August

31, 2026, Plaintiff's Counsel must file in 26STCV12403 either a request

for entry of *HIRING ANYWHERE INC.*'s default

or a declaration explaining the failure to seek and obtain *HIRING ANYWHERE INC.*'s default, setting forth any

and all efforts undertaken to obtain *HIRING ANYWHERE INC.*'s default, and explaining

why sanctions (including monetary sanctions of at least \$1,000) should not be

imposed for failure to timely seek *HIRING ANYWHERE INC.*'s default, in compliance

with California Rules of Court, Rule 3.720.

Failure to comply by August 31, 2026 may result in the Court

setting an OSC re sanctions.

FURTHER CASE

MANAGEMENT FOR BOTH ACTIONS (26STCV12403 and 26STCV21313):

Both actions (26STCV12403
and 26STCV21313) are stayed.

For both cases (26STCV12403
and 26STCV21313), the Initial Status Conference is continued to October 5,
2026 at 8:30 am. In each case, the
parties are to file a Joint Initial Status Conference Report by no later than September
28, 2026 in compliance with the Court's Initial Status Conference order.

Plaintiff's

Counsel is ordered to give notice to all other parties and file proof of
service of such.